

**BEFORE THE
FEDERAL MARITIME COMMISSION**

TCW, INC.,	)	
Claimant,	)	
v.	)	FMC Docket
	)	No. 1966(I)
EVERGREEN SHIPPING AGENCY	)	
(AMERICA) CORPORATION &	)	
EVERGREEN LINE JOINT SERVICE	)	
AGREEMENT,	)	
	)	
Respondents	)	
	)	

**Motion of Ports America, Inc. and SSA Terminals, LLC
for Leave to File Amicus Curia Brief**

Pursuant to 46 C.F.R. § 502.73 and the April 26, 2021, Order for Supplemental Briefing (“April 26 Order”) of the Federal Maritime Commission (“Commission”), Ports America, Inc. (“Ports America”) and SSA Terminals, LLC (“SSA”), hereby move for leave to submit a brief of amicus curiae supporting Respondents in this proceeding. By its April 26 Order, the Commission has invited interested parties to file amicus briefs regarding issues of law and policy as outlined in such order. As major U.S. marine terminals operators, Ports America and SSA may be materially affected by any determination of the Commission regarding applicability of the Commission's interpretative rule with respect to demurrage charges. The Commission’s consideration of this amicus brief is desirable to apprise the Commission of important

considerations of law and policy not already brought to the Commission's attention by the parties. Accordingly, it is appropriate for Ports America and SSA to file such a brief.

Respectfully submitted,

/s/ Gerald A. Morrissey III
Gerald A. Morrissey III
HOLLAND & KNIGHT LLP
800 17th Street N.W.
Washington, DC 20006
Email: gerald.morrissey@hklaw.com
Tel: 202-469-5497

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